

2.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION APPLICATION FOR APPOINTMENT OF GUARDIAN AD LITEM

Tentative Ruling: Deny.

There is insufficient evidence presented that there is a need for a Guardian ad litem at this time. There is no capacity declaration signed and filed under penalty of perjury by an expert witness. Nor is a diagnosis of dementia sufficient in itself to establish incapacity. (*In re Marriage of Greenway* (2013) 217 Cal.App.4th 628.) Legally, a medical declaration is not required nor determinative. Medical testimony can be very helpful, but only if it provides evidence to assist the court in making the findings required to determine incapacity. Lay testimony can also be sufficient, if it meets the standards for appointing a GAL (which is outlined in C.C.P. §372(a)(2) and *In re Christina B.* (1993) 19 Cal.App.4th 1441). Here those standards have not been met.

The issue of conflict of interest must be determined by evidence presented to the Court. Herein, there is insufficient evidence for the Court to make a determination one way or the other. At the proper time the parties may wish to present evidence in the form of declarations under penalty of perjury or request an evidentiary hearing for the Court to make this determination.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500617	LOPEZ VS LOPEZ	MOTION TO BE RELIEVED AS COUNSEL FOR ALBERT LOPEZ

Tentative Ruling: Grant. The order shall not be effective until counsel has filed a proof of service indicating service on the client, including all future dates for the case.

An attorney's motion to be relieved as counsel is governed by CRC 3.1362. The motion must be directed to the client, and must be made on the mandatory Judicial Council Form Civil MC-051. No memorandum of points and authorities is required. The motion must be supported by a declaration on Judicial Council Form Civil MC-052. The declaration must state in general terms (without compromising the confidentiality of the attorney-client relationship) why a court order is required, as opposed to a substitution by mutual consent. Where the ground for withdrawal is a "conflict of interest" with the client, the attorney must describe the general nature of the conflict as fully as possible, within the confines of the attorney-client privilege (Manfredi & Levine vs. Superior Court (Barles) (1998) 66 Cal. App. 4th 1128, 1134). As a practical matter, attorneys moving to withdraw on the grounds of a conflict of interest or for other privileged reasons frequently offer to provide additional details *in camera*, if the Court so desires.